



CHAPTER 46

An Act to provide for increasing the salaries of the recorders of Liverpool and Manchester, of county court judges and of metropolitan police magistrates; to make further provision as to the pensions of the said recorders; and for purposes connected with the matters aforesaid. [17th July, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) There shall be paid—

Increases of
salaries.

- (a) to the recorder of Liverpool, during his service as a judge of the Crown Court at Liverpool and the Crown Court at Manchester, and to the recorder of Manchester, during his service as a judge of those courts, a salary of four thousand five hundred pounds a year, instead of the salary of four thousand pounds a year now payable;
- (b) to every county court judge a salary of three thousand seven hundred and fifty pounds a year, instead of the salary of two thousand eight hundred pounds a year now payable;
- (c) to the chief of the metropolitan police magistrates a salary of three thousand seven hundred and fifty pounds a year, instead of the salary of two thousand eight hundred pounds a year now payable;
- (d) to every metropolitan police magistrate (other than the chief of them) a salary of three thousand four hundred pounds a year, instead of the salary of two thousand five hundred pounds a year now payable.

(2) The salary payable under this section to a recorder, to a county court judge or to a metropolitan police magistrate—

- (a) shall be charged on and paid out of the Consolidated Fund;
- (b) shall (subject to the next following subsection) begin from the date of his appointment and accrue due from day to day; and
- (c) shall be payable at such intervals, not exceeding three months, as the Treasury think fit.

(3) The preceding provisions of this section shall have effect as from the eighteenth day of April, nineteen hundred and fifty-seven (the salary under this section of a recorder, judge or magistrate who held office on that day beginning from that day instead of from the date of his appointment); and any judge or magistrate to whom a salary is payable under this section and who held office on that day, or was appointed after that day and before the passing of this Act, shall be deemed, for the purposes of any enactment relating to superannuation, to have received his salary under this section from that day, or from the date of his appointment, whichever is the later.

(4) If, at any time after the passing of this Act, it appears to the Lord Chancellor that any of the salaries specified in subsection (1) of this section ought to be increased, the Lord Chancellor, with the consent of the Treasury, may by order direct that such of those salaries as may be specified in the order shall be increased to such amount as may be so specified:

Provided that no order shall be made under this subsection unless a draft of the order has been laid before Parliament and approved by a resolution of each House of Parliament.

(5) The power to make orders under the last preceding subsection shall be exercisable by statutory instrument; and any order under that subsection—

- (a) may contain such transitional, supplementary and incidental provisions as may appear to the Lord Chancellor to be necessary or expedient for the purposes of the order; and
- (b) may be revoked or varied by a subsequent order under that subsection.

(6) In paragraph (b) of subsection (2) of section ten of the Criminal Justice Administration Act, 1956 (which relates to contributions by the city councils of Liverpool and Manchester towards the salaries and pensions of the recorders of Liverpool and Manchester), after the words "this Act" there shall be inserted the words "or under the Judicial Offices (Salaries and Pensions) Act, 1957".

2.—(1) In subsection (5) of section four of the Criminal Justice Administration Act, 1956 (which relates to the pensions of the recorders of Liverpool and Manchester), for the words from “a pension at the rate of one thousand pounds a year” to the end of the subsection, there shall be substituted the words “an annual sum by way of pension calculated in accordance with the provisions of the First Schedule to the Judicial Offices (Salaries and Pensions) Act, 1957”.

Pensions of
recorders of
Liverpool and
Manchester.

(2) The First Schedule to this Act shall have effect for the purposes of the said subsection (5) as amended by the preceding subsection; and in that Schedule “the recorder” means the recorder of Liverpool or of Manchester.

3.—(1) This Act may be cited as the Judicial Offices (Salaries and Pensions) Act, 1957.

Short title,
repeals and
extent.

(2) The enactments specified in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) This Act shall not extend to Scotland or to Northern Ireland.

SCHEDULES

Section 2.

FIRST SCHEDULE

PENSIONS OF RECORDERS OF LIVERPOOL AND MANCHESTER

The pension shall be calculated by reference to the last annual salary to which the recorder is entitled by virtue of section one of this Act, so that, when the number of the recorder's completed years of service as a judge of the Crown Courts at Liverpool and Manchester is as specified in the first column of the following table, the amount of the annual pension is equal to the fraction of that salary specified in relation thereto in the second column of that table:—

<i>Years of Service</i>	<i>Fraction of Salary</i>
5	Ten-fortieths.
6	Eleven-fortieths.
7	Twelve-fortieths.
8	Thirteen-fortieths.
9	Fourteen-fortieths.
10	Fifteen-fortieths.
11	Sixteen-fortieths.
12	Seventeen-fortieths.
13	Eighteen-fortieths.
14	Nineteen-fortieths.
15 or more	Twenty-fortieths.

Section 3.

SECOND SCHEDULE

REPEALS

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 6. and 1 Eliz. 2. c. 12.	The Judicial Offices (Salaries, &c.) Act, 1952.	In section one, subsections (1) to (3).
4 & 5 Eliz. 2. c. 34.	The Criminal Justice Administration Act, 1956.	In section four, subsection (4).

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